

“The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.” CCP § 473(b). Additionally, the Court can impose a penalty no greater than \$1,000, direct a payment of no greater than \$1,000 to the State Bar Client Security Fund, or grant other relief as appropriate.

Here, Plaintiff seeks \$2,101.85 as reimbursement of costs incurred in seeking default that would not have been incurred had Defendant timely responded to the summons. The \$2,101.85 is comprised of fees for service of process, attorney time to prepare a letter regarding service, attorney time for requesting default, attorney time to meet and confer regarding setting aside the default, and attorney time spent on this motion, including the reply and attending the hearing. The Court finds that the service of process fees and .4 hours to prepare the letter regarding service would have been incurred regardless. However, Plaintiff's counsel spent .4 hours preparing the Request for Entry of Default, .9 hours meeting and conferring regarding this motion, and 2.5 hours reviewing and responding to this motion. Counsel expects to spend one hour attending the hearing and reviewing the Reply which would bring the total to 4.8 hours of attorney time. The Court finds the \$350 hourly rate to be reasonable. The Court orders that Defendant and counsel reimburse Plaintiff for \$1,680.00 for attorney fees incurred by Plaintiff that would not have been incurred had Defendant timely responded to the summons.

The Court notes that Defendant also moves under CCP § 473.5 and extrinsic mistake. The Court need not reach the merits of either as the motion is granted under CCP § 473(b). However as there is an argument regarding fees, the Court notes that to prevail under CCP § 473.5, a defendant must show that service of the summons did not result in actual notice to the party. That is not the case here. Missing from Defendant's declaration is any mention that he did not receive the summons when it was served by substitute service at Defendant's place of employment on October 30, 2024. While CRC 3.1700(a)(2) requires that costs be requested at the time of seeking a default judgment, only a default was sought on December 26, 2024, not a default judgment. Additionally, Defendant has provided no legal authority that the Court cannot order reimbursement of costs under CCP § 473 when the costs are not listed under Item 2 of the CIV-100 form or that the Court cannot order reimbursement when the default is set aside based on intrinsic mistake. The Court notes that had the Court set aside under the discretionary portion of CCP § 473(b), the Court could still impose “any terms as may be just.” Reimbursement of costs incurred due to the fault of the opposing party is manifestly just.

The motion is **GRANTED**. The default entered on December 26, 2024 is ordered set aside. Defendant must file a responsive pleading within 30 days of today's hearing. Defendant and counsel have 10 days from today's hearing to reimburse Plaintiff \$1,680.00. Defendant did not provide a proposed Order as required by Local Rule of Court 5.17(D). Defendant is to prepare an Order consistent with the Court's ruling. The Court confirms the review hearing scheduled for **Monday, July 7, 2025 at 9:00 a.m. in Department 63.**

REYNOLDS VS. QUALITY CARE HOME, INC., ET AL.

Case Number: 22CV-0200604

Tentative Ruling on Motion for Terminating Sanctions: Plaintiff Lisa Reynolds moves for terminating sanctions based on Defendants' failure to pay monetary sanctions ordered in prior discovery motions. On May 5, 2025, Defendants filed the Declaration of Yue Zhao providing evidence a check was mailed on April 7, 2025 and another check was hand delivered on April 22, 2025. Plaintiff filed a Notice of Non-Opposition on May 6, 2025 in which Plaintiff confirms that both checks were received. While the payment of the monetary sanctions does not render the motion moot, the Court does not find that any additional sanctions are warranted and declines to award any of the relief requested by Plaintiff. The motion is **DENIED**. No sanctions will be awarded. Plaintiff provided a proposed Order that will be modified to reflect the Court's ruling.